

Stereo. H C J D A 38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

RSA No.62/2018
Mst. Shamim Akhtar etc. **Versus** Muhammad Younis Khan etc.

J U D G M E N T

Date of Hearing:	13.09.2022
Appellants by:	Mr. Qaiser Amir Khan, Advocate.
Respondents No.1 to 4 by:	Proceeded against <i>ex-parte vide</i> order dated 13.12.2021.
Respondents No.5 to 47 by:	Syed Khalid Javaid Hussain Shah, Advocate.

Anwaar Hussain, J. The appellants before this Court, claim to be the vendees under the agreement to sell dated 15.04.1993 (“**the agreement**”), entered into between predecessor-in-interest of the appellants No. 1 to 5, namely, Muhammad Nawaz Khan (since deceased) along with appellant No. 6 namely, Jamshed Akhtar Khan *alias* Jamshed Mustafa Khan, (hereinafter referred as “**the Plaintiffs/Appellants**”) and predecessor-in-interest of respondents No.1 to 4 (hereinafter referred as “**the Defendants/Respondents No. 1 to 4**”). Suit for specific performance was instituted by the Plaintiffs/Appellants, with the averments that Muhammad Saleem Khan *alias* Yar Muhammad Khan, predecessor-in-interest of Defendants/Respondents No.1 to 4, was owner of land measuring 400 *Kanals* situated in *Khewat* No.75 as per Register Haqdaran-e-Zameen for the year 1988-89, Mauza Hassan Shah Tehsil *Mailsi*, District *Vehari* (hereinafter referred as “**the suit property**”); that said Muhammad Saleem Khan, through his general attorney, namely, Muhammad Younis Khan who is his real son and arrayed as Respondent No.1 in the present appeal, agreed to sell the suit property to the Plaintiffs/Appellants through the agreement for consideration of Rs.3,500,000/-; that a sum of Rs.3,000,000/- was paid as

earnest money in presence of witnesses against receipt and possession of 160 *Kanals* out of said 400 *Kanals* was handed over to the Plaintiffs/Appellants and it was settled between the parties that the remaining amount of Rs.500,000/- would be paid till 01.01.1994; that it was also agreed between the parties that if the vendor fails to execute the sale deed in favour of the vendees, the latter would be entitled to transfer the suit property through court of law, without payment of remaining sale price and if the vendees fail to pay the balance price, the earnest money of Rs.3,000,000/- would stand forfeited in favour of the vendor; that on 22.05.1993, the vendor Muhammad Saleem Khan passed away and the Defendants/Respondents No.1 to 4, being his legal heirs, were asked to execute the sale deed in favour of the Plaintiffs/Appellants and written legal notice in this regard was also served upon them but they refused to do so, which constrained the Plaintiffs/Appellants to institute the suit.

2. The suit was contested by the Defendants/Respondents No.1 to 4, by filing written statement wherein besides some preliminary objections, the factual assertions of the plaint were denied. It was averred that deceased Muhammad Saleem Khan, predecessor-in-interest of the Defendants/Respondents No. 1 to 4 never entered into the agreement with the Plaintiffs/Appellants; that the agreement is fictitious and forged; and that the Plaintiffs/Appellants, being close relatives of the Defendants/Respondents No.1 to 4, are in possession of the suit property on account of the fact that they are holding land in excess of their entitlement in a joint *khata* to the prejudice of the Defendants/ Respondents No. 1 to 4 and not in furtherance of the agreement.

3. Out of divergent pleadings of the parties, issues were framed and evidence led by the parties was recorded. Learned Trial Court decreed the suit of the Plaintiffs/Appellants, *vide* judgment and decree dated 18.06.2001. Feeling aggrieved, the Defendants/ Respondents No.1 to 4 preferred an appeal before this Court. The Plaintiffs/Appellants also

preferred appeal against imposing condition of depositing the remaining sale price of the suit property, i.e., Rs.500,000/-. The appeal of the Defendants/Respondents No.1 to 4 was dismissed for want of prosecution, *vide* order dated 16.09.2013 and in this backdrop the Plaintiffs/Appellants did not press their appeal as well and the same was also dismissed as withdrawn *vide* order dated 16.09.2013. Later on, the appeal of the Defendants/Respondents No.1 to 4 was restored on 10.10.2013 and on their application, present Respondents No.5 to 47, being the subsequent vendees (hereinafter referred as “**the Subsequent Vendees/ Respondents No. 5 to 47**”), were impleaded in the appeal and case was remitted to learned District Judge, *Mailsi*, on 27.09.2016, because of change in the pecuniary jurisdiction of this Court. Respondents No.21 to 47 moved application for framing of additional issues. The Defendants/Respondents No.1 to 4 and the Subsequent Vendees /Respondents No.5 to 20, through their separate written replies, admitted the contents of the application whereas the Plaintiffs/Appellants filed contesting written replies separately. After hearing the parties, the learned Appellate Court below allowed the appeal, set aside the judgment and decree of the learned Trial Court and dismissed the suit of the Plaintiffs/Appellants, *vide* judgment and decree dated 16.01.2018. Hence, this Regular Second Appeal has been preferred.

4. The Defendants/Respondents No.1 to 4 have already been proceeded *ex-parte*, *vide* order dated 13.12.2021.

5. Learned counsel for the Plaintiffs/Appellants submits that the minor discrepancies in statements of the PWs were irrelevant and wrongly taken as major contradictions when the factum of execution of the agreement, the receipt of payment of the sale consideration and delivery of possession was proved. Adds that the respondents evasively denied the execution of the agreement and took a contradictory stance in their evidence. Places reliance on case reported as “Mumtaz Khan and 8 others v. Haji Nawab Khan” (2003 MLD 399) to contend that the

Defendants/Respondents No.1 to 4 evasively denied the execution of any agreement in their pleadings and while adducing evidence, DW-2 took the stance that thumb marked stamp papers in favour of the Appellants/Plaintiffs were got issued by predecessor-in-interest of the Defendants/Respondents No. 1 to 4 for the purpose of confirmation of bail in a criminal case which were misused, hence, as the signatures and thumb marks on the stamp paper have been admitted, the same shifted the burden upon the Defendants/Respondents to prove the said purpose which they could not discharge. Concludes that the learned Appellate Court below misread the evidence by holding that the stamp vendor failed to produce the receipt of submission of record with the record room, therefore, the issuance of the stamp papers could not be proved.

6. Conversely, learned counsel for the Subsequent Vendees/ Respondents No. 5 to 47, while admitting that Subsequent Vendees/Respondents No. 5 to 47 purchased the suit property during the pendency of the suit, submits that they are *bona fide* purchasers for value as no notice of earlier sale or pendency of litigation was recorded in the revenue record. Adds that even otherwise, the agreement was not proved as required under the law and the learned Trial Court took a jaundiced view of the evidentiary resume of the case by only highlighting deficiencies in the defence case ignoring that the Plaintiffs/Appellants were to stand on their own legs. Places reliance on “Nazir Abbas through L.Rs. v. Ghulam Muhammad through L.Rs.” (2017 CLC 996) and “Liaqat Ali v. Muhammad Ashraf and others” (2016 YLR 551) in support of his contentions.

7. In rebuttal, learned counsel for the Plaintiffs/Appellants stated that the Subsequent Vendees/Respondents No.5 to 47 are not *bona fide* purchasers inasmuch as they are close relatives of DW-3 who was *mustajir* and is one of the subsequent vendees arrayed as Respondent No.47 and was in possession of the remaining suit property at the time of execution of the agreement and well aware of the dispute. Concludes

that since Subsequent Vendees/Respondents No. 5 to 47 purchased the suit property, having full knowledge of the dispute in respect of the same, therefore, they are not *bona fide* purchasers and principle of *lis pendens* is also fully applicable.

8. Arguments heard. Record perused.

9. After hearing learned Counsel for the parties, it transpires that the substantial question of law involved in the adjudication of the instant *lis* boils down to whether findings by the learned Appellate Court below are substantiated by evidence on the record and is supported by logical reasoning, duly taking note of the reasons adduced by the learned Trial Court or the learned Appellate Court below, on account of misreading and mis-appreciation of the evidence, has failed to take into account a material piece of evidence. The answer lies in examining whether execution of the agreement, payment of sale consideration and possession of the suit property was not proved by the Plaintiffs/Appellants.

10. With the above legal position in sight, it is imperative to note that in order to succeed, the Plaintiffs/Appellants were required to prove that the parties reached a consensus in respect of the sale of the suit property. The issuance of the stamp paper used to reduce the sale transaction into writing i.e., the agreement, was required to be proved by producing its vendor. Similarly, the attesting witnesses of the agreement were required to prove the execution and contents thereof. It has come on record that Plaintiff No.2/Appellant No.6, himself appeared as PW-1 and also examined both marginal witnesses of the agreement as PW-3 and PW-4 to fulfill the requirement of Article 79 of the *Qanoon-e-Shahadat* Order, 1984. He also produced the receipt (Exh-P.2), which was witnessed by the same PWs. Moreover, stamp vendor was also produced as PW-2.

11. The learned Appellate Court below has highlighted the inconsistencies in the statements of PWs to hold that same are major

contradictions, which the learned Trial Court has not noticed. The inconsistencies which the learned Appellate Court below have held to be major contradictions, *inter alia*, includes part of the statement of PW-1 who has stated that PW-4 has affixed signatures on the agreement whereas PW-4 himself stated that he has affixed thumb impression. Having examined the entire evidence of the Plaintiffs/Appellants in general and the statements of PW-1 and PW-4 in particular, this Court is of the view that this type of inconsistencies are not of such a nature that can be held to destroy the entire statements of the said PWs. Similarly, the statement of one of the witnesses (PW-3) that the agreement was on stamp paper and the receipt was on plain paper and other PWs stating that both documents were on stamp papers too is also not a major contradiction keeping in view the fact that the witnesses are admittedly villagers and not educated persons and it is not only difficult for such persons to differentiate between a plain paper and a stamp paper but also remember the same for a long period of time, between the execution of the document and the recording of evidence. Likewise, if one witness stated that it was month of March, 1991 whereas the agreement was executed in April, 1991, the same too could not be made basis of discarding the entire evidentiary resume of the Plaintiffs/Appellants inasmuch as shortcomings as pointed out by the learned Appellate Court below are not only minor in nature but are natural and usual as the agreement was executed in the year 1993 whereas the evidence was recorded in the year 2000. Here it is also imperative to note that the witnesses appearing in the Court after lapse of considerable period of time from the date of transaction are likely to contradict each other on minor points because human faculty of memory is subject to faltering and the testimony of witness, *inter se*, always of varying nature because after lapse of such a long time they are not expected to give cent percent accurate statement on each and every minor detail regarding a transaction having taken place in their presence else the same appears to have been result of tutoring. Therefore, in the instant case, minor

inconsistencies between statements of PWs have been given undue weightage by the learned Appellate Court below and are not of such significance so as to throw out the entire claim of the Plaintiffs/Appellants more particularly, when the possession of the Plaintiffs/Appellants over part of the suit property has been admitted by the Defendants/Respondents No. 1 to 4 side *albeit* claiming it to be on account of the fact that the property is in joint *khata* and the Plaintiffs/Appellants were in possession of excess of their entitlement. Here, it is imperative to note that the Defendants/ Respondents No.1 to 4 failed to provide any plausible explanation as to why the Defendants/Respondents No.1 to 4 or their predecessor-in-interest never challenged the excess possession of the Plaintiffs/Appellants in accordance with law before or even after institution of the suit by the Plaintiffs/Appellants. The learned Appellate Court ignored the fact that the evidence of PWs as a whole was required to be analyzed, which has gone unchallenged as to the material issue and in cross examination it has not been dislodged so as to disbelieve the same regarding the sale itself and the payment of price consideration made thereunder.

12. On the other hand, once the fact was asserted by the Plaintiffs/Appellants about the execution of the agreement and the same was appended with the plaint, it was obligatory on part of the Defendants/Respondents No.1 to 4 to come forward with a clear stance as to how the agreement was fictitious and/or forged. However, when the plaint and written statement are put in juxtaposition, perusal thereof indicates that while nothing explicit was stated in the written statement as to how the agreement was forged, the stance taken by the Defendants/ Respondents No.1 to 4 while leading evidence destroys their case in totality as the evidence was led beyond pleadings and a new story about existence of criminal case wherein the purchase of stamp papers and signatures thereon was asserted. It is settled principle of law that particulars of fraud are to be explicitly stated in the pleadings and then

proved. In the instant case, the said principle has not been followed and evidence led beyond pleadings is of no help to the Defendants/Respondents No.1 to 4. Case titled as “Muhammad Tariq and others v. Mst. Shamsa Tanveer and others” (PLD 2011 SC 151) is referred in this regard. Moreover, while the Plaintiffs/Appellants clearly indicated their willingness to pay the remaining consideration amount by issuance of legal notice before instituting the suit, the Defendants/Respondents No. 1 to 4 admitted receipt of legal notice in their written statement but again contradicted their stance when Defendant No.1/Respondent No.1 appeared as DW-2 and denied receipt of the notice. In fact, the Defendants/Respondents No.1 to 4 had failed to lead any convincing evidence in defence. Furthermore, the learned Appellate Court below has misread the evidence inasmuch as it non-suited the Plaintiffs/Appellants with the observation in paragraph 24 of the impugned judgment that the stamp vendor could not produce the record of stamp papers Nos. 934 to 935 dated 15.04.1993 and he during cross-examination admitted that he even had not brought the receipt of the record room regarding the consignment of the concerned register bearing the record of stamp papers Nos. 934 & 935, whereas the stamp vendor (PW-2) appeared and stated as under:

"میں عرصہ دس سال سے اسٹامپ فروشی کا کام کر رہا ہوں۔ میں طلبیدہ گواہ ہوں۔ اسٹامپ خریدنے والا کا رجسٹر پر دستخط کروائے ہیں اب سال 1995 سے اسٹامپ کی پشت پر بھی دستخطوں کی ہدایت ہے۔ اور اس کے بعد ہم نے اسٹامپ کی پشت پر دستخط کروانے شروع کروائے ہیں درست ہے کہ سمن پر تحریر ہے کہ میں ریکارڈ لیکر اؤں ریکارڈ صدر روم وپاڑی میں جمع ہیں یہ عدالت طلب کر سکتی ہے ریکارڈ جمع کرانے کی رسید پیش کرتا ہوں جس کا سیریل 1 تا 1464 ہے رسید بعد ملاحظہ واپس کی گئی۔"

(Emphasis supplied)

Above quoted portion of statement clearly depicts that learned Trial Court examined and returned the receipt regarding consignment of the register bearing stamp pages No.934 and 935. Therefore, after recording of statement of PW-2, no effort was made on part of the

Defendants/Respondents No.1 to 4 to summon the record of the stamp paper used to record the transaction, which fact also goes against the Defendants/Respondents No.1 to 4. Similarly, the learned Appellate Court has also erred by holding that there is contradiction as to who scribed the agreement by holding as under:

“24. ...On the other hand, DW-1 Muhammad Saleem Akhtar the then clerk of Rana Muhammad Asghar Advocate stated that Muhammad Nawaz plaintiff got two blank stamp papers and one simple paper alongwith writing and he wrote the (sic) some writing on Ex.P-1 and Ex.P-2. This witness was cross examined by the respondents/plaintiffs but the plaintiffs could not prove that he is not scribe of Ex.P-1 and Ex.P-2.”

(Emphasis supplied)

The record reveals that PW-1 categorically stated that after the stamp papers were purchased by DW-2, the parties went to the seat of one Rana Muhammad Asghar, Advocate and his clerk (*Munshi*) namely, Muhammad Saleem Akhtar recorded the transaction, who appeared before the Court from nowhere on the date of recording of evidence of the Defendants/Respondents No. 1 to 4 and deposed as DW-1, which is the most interesting aspect of evidentiary resume of the case inasmuch as in his statement, DW-1 categorically stated that he has not been summoned by the learned Trial Court. Respondent No.1/DW-2 also admitted that DW-1 was not his witness. Learned Trial Court has aptly held in this regard that when DW-1 was neither summoned by the Court as witness nor he has any special relation with the defendants, then his presence to come and depose against the Plaintiffs/Appellants clearly leads to inference that said DW-1, who was admittedly scribe of the agreement was won over by the Defendants/Respondents No. 1 to 4. In addition, it has been noticed that DW-1 in his Examination-in-Chief stated that the agreement and receipt were written by him but only in presence of late Muhammad Nawaz (predecessor-in-interest of Appellants No. 1 to 5) and the witnesses of the agreement never signed

before him while confirming the place of execution of the agreement by stating as under:

"یہ درست ہے کہ اقرار نامہ Ex.P.1 اور رسید Ex.P.2 پر گواہ شد گواہان کے نام فریقین کے نام شناختی کارڈ نمبر وغیرہ میرے تحریر کردہ ہیں یہ بھی درست ہے Ex.P.1 پر محمد یونس ولد محمد سلیم خان کا نام جمشید اختر عرف جمشید کا نام محمد نواز خاں کا نام گواہان بشیر احمد اور عاشق محمد کا نام میرے قلمی ہے یہ درست ہے کہ تحریر والے دن لکھے گئے تھے - 15.04.1993 کو لکھے گئے تھے - اس وقت میرے پاس اسٹام فروش کا لائسنس نہ تھا۔ یہ درست ہے کہ Ex.P1 پر Ex.P1/5 میرے دستخط ہیں یہ درست ہے کہ آج مجھے محمد یونس خاں لے کر آیا ہے۔ یہ درست ہے کہ میں عدالت کی طرف سے طلبیدہ گواہ نہ ہوں۔ یہ درست ہے کہ میں دستاویزات اور رسیدات تحریر کرتا رہا ہوں۔ اس سے پہلے میں نے ایسی کوئی دستاویز یا رسید تحریر نہ کی ہے جس پر فریقین میرے سامنے نہ آئے ہیں یا میں نے ان سے خود دستخط نہ کروائے ہوں۔ Ex.P.1 اور Ex.P.2 پر محمد یونس ولد محمد سلیم خان کے شناختی کارڈ کے نمبران میرے قلمی ہیں میں نے یہ بات اسٹام میں تحریر نہ کی ہے کہ فریقین میرے پاس نہ آئے ہیں یہ بھی نہ لکھا ہے کہ میں نے محمد نواز کے کہنے پر تحریر منتقل کی ہے میں نے جمع بندی نہ دیکھی تھی۔"

(Emphasis supplied)

13. The matter can be examined from another angle as well. The Defendants/Respondents. No. 1 to 4, though in their written statement, have alleged that the agreement and the receipt are fake, yet they have not specifically challenged the same either by way of initiating criminal proceedings or through an independent civil suit even after taking preliminary objection in this regard. The Honorable Supreme Court in case titled "*Sajjad Ahmad Khan v. Muhammad Saleem Alvi and others*" (2021 SCMR 415) held that in such an eventuality simple denial of a document being fake and fictitious is not legally sufficient unless same facts are proved and established on record. In the instant case, it is well evident that after evasively denying the agreement as well as the receipt in their written statement, the Defendants/Respondents No.1 to 4 realized that the thumb impression of Defendant No.1/Respondent No.1 can be easily proved through forensic comparison and hence, took a somersault and admitted the signatures as well as thumb impression with the assertion that the same were obtained in connection with a criminal

matter regarding which they could not lead any proof. Statement of DW-2, during his Examination-in-Chief, reads as under:

"محمد نواز خان اور جمشید اختر خاں میرے والد کے چچا زاد ہیں اور جملہ اراضی متدعوہ مشترکہ کھاتہ میں شامل ہے۔ میں نے ایک سول (sic) ساٹھ کنال کا قبضہ اقرار نامہ کی رو سے مدعیان کو نہ دیا ہے۔ مشترکہ کھاتہ ہے۔ مدعیان عرصہ دراز سے اپنے حصہ سے زیادہ حصہ پر قابض ہیں مجھے اقرارنامہ معاہدہ بیع اور رسید کی بابت جب میرا والد فوت ہوا اور مدعیان نے دعوی دائر کیا تو علم ہوا۔ سال 1993 کی ابتدا میں نواز خاں جمشید میں نے مل کر محمد نواز خاں کے مستاجروں سے لڑائی کی۔ ان دنوں میں محمد نواز خاں کے پاس آتا جاتا تھا۔ اس لڑائی میں جمشید خاں نواز خاں اور میرے اور دیگر چند آدمیوں کے خلاف تھانہ لٹن پر فوجداری پرچہ درج ہوا پھر ہم نے عبوری ضمانتیں کروائیں پکی ضمانت ہونے سے قبل وہاڑی میں پٹواریوں کی بڑتال ہو گئی۔ محمد نواز خاں نے کہا کہ ضمانت کنفرم کروانے کے لئے پٹواری سے نقل اور جمع بندی نہ مل رہی ہے اسٹام پر بیان حلفی لکھ کر دینا پڑیں گے پھر ضمانت کنفرم ہو جائے گی۔ محمد نواز خاں نے تین تحریر شدہ اسٹاموں پر میرے دستخط کروائے۔"

(Emphasis supplied)

Whereas while being cross-examined, DW-2 even could not substantiate the story narrated in Examination-in-Chief and stated as under:

"ہم نے بیان حلفی کے لئے اسٹام لئے تھے۔ اس لئے اس وقت اپنے جواب دعوی میں یہ بات تحریر نہ کروائی تھی۔ یہ درست ہے کہ اپنے باپ کا مختیار عام تھا۔ میں نے بیان حلفی کے لئے بھی کوئی اسٹام خود خرید نہ کئے تھے وکیل کے جیمبر پر بیٹھے تھے۔ تین لکھے ہوئے اسٹاموں پر رانا اصغر وکیل کے جیمبر پر محمد نواز خاں نے میرے دستخط کروائے۔ علم نہ ہے کہ کس نے تحریر کئے تھے۔ بشیر کا ہمارے ساتھ آنا جانا نہ ہے۔ ہمارے ساتھ کوئی مخالفت یا لڑائی نہ ہے۔ میرے ساتھ عاشق محمد کی کوئی لڑائی یا دشمنی نہ ہے۔ تاریخ دن یا مہینہ بابت پرچہ یاد نہ ہے بیس ایکڑ ہماری زمین کا قبضہ مدعیان کے پاس ہے۔ محمد نواز نے اسٹاموں پر دستخط کروا کر مجھ سے لے لئے تھے۔"

(Emphasis supplied)

14. On the top of all is the statement of DW-3, namely, Riaz Hussain who is one of the subsequent vendees and arrayed as Respondent No.47 and deposed that he was in possession of some part of the suit property as *Mustajir* as contended by the Plaintiffs/Appellants. When confronted, learned counsel also could not deny the fact that rest of the Subsequent Vendees/Respondents No. 5 to 47 are close relatives and/or acquaintances of the said DW-3. This fact alone indicates that the

Subsequent Vendees/Respondents No. 5 to 47 were well aware of the dispute regarding the sale of the suit property under the agreement. DW-3 stated as under:

"تیس پنتیس سال سے رقبہ مدعا علیہ کاشت کرتا چلا آ رہا ہوں پہلے ان کے والد کا رقبہ کاشت کرتا تھا۔ اب مدعا علیہ کا رقبہ کاشت کرتا ہوں۔ شروع شروع میں مزارع رہا ہوں اب ان کا رقبہ میرے پاس مستاجری پر ہے۔میں نہ بتا سکتا ہوں کہ محمد یونس خاں نے اپنی مرضی سے ہمراہ مدعیان سودا کیا ہے۔ یہ بات محمد یونس خاں نے بتائی ہے کہ میرے ساتھ فراڈ ہوا ہے۔"

It is settled law that a subsequent vendee/purchaser has to establish by discharging the initial onus that (i) he acquired the property for due consideration and thus is a transferee for value, meaning thereby that his purchase is for the price paid to the vendor and not otherwise; (ii) there was no dishonesty of purpose or tainted intention to enter into the transaction while acting in good faith and (iii) he had no knowledge or notice of the original sale agreement between the plaintiff and the vendor at the time of his transaction with the latter. Reliance is placed on cases reported as "Hafiz Tassaduq Hussain v. Lal Khatoon" (PLD 2011 SC 296) and "Bahar Shah and others v. Manzoor Ahmad" (2022 SCMR 284). In this view of the settled law, in the instant case, Subsequent Vendees/Respondents No.5 to 47 cannot claim to be *bona fide* purchasers. The cases referred by learned counsel for the Subsequent Vendees/Respondents No.5 to 47 have been considered but the same are distinguishable on facts and law point involved in the instant appeal.

15. This Court is aware of the fact that where the judgments of the learned Courts below are at variance and this Court is hearing a second appeal, preference should be given to the judgment of the learned Appellate Court below. However, the said principle of law does not entail its universal application, hence, it is not an impregnable and invariable rule of law as the finding of the lower Appellate Court would be immune from interference in second appeal only if the same is supported and substantiated by logical reasoning and proper appreciation

of evidence and is not result of misreading and/or non-reading of evidence. Where the findings of the lower Appellate Court are at variance with that of the Trial Court, the two will definitely come in for comparison of their merits in light of the facts of the case and the reasons of which the two different and contradictory, if not opposing, findings have been respectively proceeded. If the judgment of the learned lower Appellate Court is found to be arbitrary or capricious, it can be rejected as held by the Honorable Supreme Court in case reported as “Madan Gopal & 4 others vs. Maran Bepari & 3 others (PLD 1969 SC 617).

16. Similarly, in Civil cases, what is required or considered sufficient is preponderance of evidence on the scale of probability while weighing the evidence of both the parties. On the basis of said yardstick applied in the present case, this Court is of considered view that the learned Appellate Court below has entirely gone against the weight of available evidence in holding that the execution of the agreement has not been proved although analysis of the evidentiary resume of the case clearly shows that the Plaintiffs/Appellants have been steadfast, consistent and unwavering in their stance not only in their pleadings about execution of the agreement and the receipt but also in their deposition and cross examination. On the contrary, the Defendants/Respondents No. 1 to 4 have not laid any serious challenge to the version of PWs rather one predominant element running across the pleadings and evidence of the Defendants/Respondents No.1 to 4 is evasive denial of the execution of the agreement leading to improvement of the case through recording evidence beyond pleadings vacillating from one position to another, without being able to substantiate either.

17. In view of the above discussion, this Regular Second Appeal is **allowed**, the impugned judgment of the learned Appellate Court is set aside and that of the learned Trial Court is restored. No order as to cost.

(ANWAAR HUSSAIN)
Judge

Approved for reporting.

Judge

Akram